

Smt. Sushma Devi v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 18 July 2018 · WRIT - C No. 24101 of 2018 · **Writ disposed; relegated to Clause 7(1)(3) complaint, to be decided in 30 days.**

HEADNOTE

Mandamus to compel a prepaid connection was refused where the licensee had denied supply because of a premises dispute. The consumer was relegated to a representation/complaint under Clause 7(1)(3) of the Uttar Pradesh Electricity Supply Code, 2005, to be decided preferably within 30 days of filing.

FACTUAL SUMMARY

Smt. Sushma Devi sought a mandamus directing respondents 3 and 4 to grant her a prepaid electric connection forthwith. By order dated 23 June 2018, the Up Khand Adhikari had refused the connection, holding that a dispute existed regarding the premises and that supply could not therefore be given to the alleged premises. She challenged that refusal in the High Court. Counsel for the Electricity Department and the Standing Counsel were heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7(1)(3)

new connection — refusal for premises dispute — alternative complaint remedy

HOLDING

Where the licensee has refused a prepaid electricity connection on the ground of a dispute regarding the premises, a writ of mandamus to compel the connection is not entertained. The consumer's remedy is a representation or complaint under Clause 7(1)(3) of the U.P. Electricity Supply Code, 2005, which the concerned authority is to decide preferably within 30 days of filing. ¶ [unnumbered](#)

FLAG order cites 'Clause 7 (1) (3)'; numbering left as written

PRINCIPLE TAGS

relegate-to-statutory-remedy Mandamus to compel a prepaid connection was refused where the licensee had denied supply because of a premises dispute. The consumer was relegated to a representation/complaint under Clause 7(1)(3) of the Uttar Pradesh Electricity Supply Code, 2005, to be decided preferably within 30 days of filing.

¶ [unnumbered](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PREMISES DISPUTE JUSTIFIED REFUSAL OF THE PREPAID CONNECTION

Merits of the 23.6.2018 refusal left to the Clause 7(1)(3) forum. ¶ [unnumbered](#)